

HOUSE No. 4808

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, December 8, 2025.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 364) of Michael J. Finn relative to the collection of debt, reports recommending that the accompanying bill (House, No. 4808) ought to pass.

For the committee,

TACKEY CHAN.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the collection of debt.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 93 of the General Laws, as appearing in the 2024 Official Edition,
2 is hereby amended by inserting after section 24A the following new section:-

3 Section 24A 1/2. (a) Notwithstanding any general or special law to the contrary, a debt
4 collector or creditor shall be permitted to accept payment of a debt, or any portion thereof, by
5 postdated check or other similar instrument; provided, however, a debt collector or creditor shall
6 not accept from any person a check or other payment instrument postdated by more than five
7 days unless such person is notified in writing of the creditor or debt collector's intent to deposit
8 such check or instrument not more than ten, nor less than three, days, excluding legal public
9 holidays identified in 5 U.S.C. 6103(a), Saturdays, and Sundays, prior to such deposit.

10 (b) A debt collector or creditor shall not solicit any postdated check or other postdated
11 payment instrument for the purpose of threatening or instituting criminal prosecution.

12 (c) A debt collector or creditor shall not deposit or threaten to deposit any postdated
13 check or other postdated payment instrument prior to the date on such check or instrument.